

NON-DISCLOSURE AGREEMENT ("Agreement")

This Non-Disclosure Agreement ("Agreement") is entered into by and between the undersigned parties, referred to herein as the "Disclosing Party" and the "Receiving Party," collectively referred to as the "Parties." The Agreement is made effective as of the date of the last signature below ("Effective Date").

1. Confidential Information

For purposes of this Agreement, "Confidential Information" shall mean any and all non-public, proprietary, or otherwise sensitive information disclosed by the Disclosing Party to the Receiving Party, whether in oral, written, visual, electronic, or other tangible form, including but not limited to: technical specifications, trade secrets, financial data, business strategies, algorithms, prototypes, source code, product plans, and client or vendor information.

Confidential Information shall not include information that:

- was lawfully known to the Receiving Party before disclosure;
- becomes publicly known through no breach of this Agreement;
- is disclosed to the Receiving Party by a third party legally entitled to make such disclosure;
- is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information.

2. Obligations of the Receiving Party

The Receiving Party covenants and agrees that it shall:

- maintain all Confidential Information in the strictest confidence;
- use the same degree of care to protect the Confidential Information as it uses to protect its own confidential materials, but in no event less than commercially reasonable efforts;
- not disclose, publish, transmit, or otherwise disseminate Confidential Information to any third party without the prior express written consent of the Disclosing Party;
- not copy, reproduce, reverse engineer, decompile, disassemble, or attempt to derive the source of any software, materials, or techniques comprising Confidential Information.

The Receiving Party shall notify the Disclosing Party promptly upon discovery of any unauthorized use or disclosure of Confidential Information.

3. Equitable Relief

The Parties acknowledge that any breach of this Agreement by the Receiving Party may cause irreparable harm to the Disclosing Party, for which monetary damages would be an inadequate remedy. Accordingly, the Disclosing Party shall be entitled to seek injunctive relief, specific

performance, and any other equitable remedies available under applicable law, without the necessity of posting bond or proving actual damages.

4. No License or Waiver

Nothing in this Agreement shall be construed as granting, by implication, estoppel, or otherwise, any license or right to use any of the Disclosing Party's intellectual property, including but not limited to, patents, copyrights, trademarks, or trade secrets.

5. Term and Survival

This Agreement shall commence on the Effective Date and shall continue in full force and effect until terminated in writing by either Party. However, the confidentiality obligations hereunder shall survive such termination and remain in effect in perpetuity or for so long as the Confidential Information remains confidential, whichever is longer.

6. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of the State of [Insert Jurisdiction], without regard to its **conflict of laws** principles. Any disputes arising out of or relating to this Agreement shall be subject to the **exclusive jurisdiction** of the courts located within [Insert Venue].

7. Entire Agreement

This Agreement constitutes the entire understanding between the Parties and supersedes all prior discussions, negotiations, and agreements, whether written or oral. No amendment or modification of this Agreement shall be effective unless in writing and signed by both Parties.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

[Disclosing Party Signature]_____

Name:

Title:

Date:

[Receiving Party Signature]_____

Name:

Title:

Date: